that schools could expel transgender students because they are transgender, and that those actions would not violate Title IX. Such actions would qualify as sex discrimination under *Bostock*, and in those contexts, just like in the employment context for the purposes of Title VII, treating people differently because of their sex would be unlawful under Title IX.

IV

The majority's opinion ends by reciting the many wonderful ways in which playing sports can be valuable to young people. It can help build resilience, tenacity, leadership, and discipline. It can lead to life-long friendships, community, and a sense of belonging. It can bring joy and the thrill of victory, along with all the lessons one learns from experiencing defeat. The benefits are immense.

Because of the Court's decision today, West Virginia, and any other state actor, can deny B. P. J. and others like her these experiences simply because it thinks they have an inherent athletic advantage, even if the facts show that they do not. In the end, to the Court, the facts do not matter, even though the consequences are serious. The ban is absolute, so B. P. J. cannot practice on girls' teams, even if she would not take anyone's spot in an eventual competition, even if everyone who tries out for the team makes it, and even if having the chance to participate could aid immensely in treating B. P. J.'s gender dysphoria. Sports, of course, are often zero sum, but the law need not and should not be. Because the Court today errs by reducing the burden, at least in the sports context, that the Constitution places on state actors when classifying based on sex, I respectfully dissent.

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JUSTICE JACKSON, concurring in the judgment in part and dissenting in part.

I join JUSTICE SOTOMAYOR's opinion in full. I write briefly to address B. P. J.'s Title IX claim. As JUSTICE SO-

TOMAYOR explains, the Court did not need to hold that Title IX protects against discrimination solely on the basis of "biological sex," even if only "in the sports context." See *ante*, at 974–975 (majority opinion); *ante*, at 1027, n. 14 (SOTOMAYOR, J., concurring in judgment in part and dissenting in part). And it should not have. Instead, the Court should have assumed as much while leaving open the possibility that Title IX's definition of "sex" is more capacious.

As the majority notes, B. P. J. does not argue that "sex" in Title IX means anything but "biological sex," that is, sex assigned at birth. *Ante*, at 975. Accepting the concession for purposes of this case, I agree with my colleagues that her Title IX claim fails. When B. P. J. is sorted onto a team by sex assigned at birth, she doubtless suffers discrimination on the basis of her sex assigned at birth. The same is true, however, of any other athlete sorted in the same manner, regardless of their gender identity. In the context of athletics, the Javits Amendment and resulting regulations instruct that this brand of sex discrimination is permissible: The sexes may generally be separated.

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All this is true even though the holding of *Bostock* v. *Clayton County*, 590 U. S. 644 (2020), plainly applies to Title IX. Accord, *ante*, at 996–998 (GORSUCH, J., concurring); *ante*, at 1027–1029 (opinion of SOTOMAYOR, J.). Under *Bostock*'s reasoning, B. P. J. suffers discrimination on the basis of sex—yes, sex assigned at birth—when she is excluded from the girls' team because she was assigned male at birth (change her sex assigned at birth to female and her ability to play girls' sports changes too). But the same is true of a boy who was assigned male at birth. He too is excluded from the girls' team because he was assigned male at birth. All agree that the Javits Amendment and resulting regulations permit this type of (biological) sex discrimination.

But there is reason to doubt the soundness of the concession that Title IX's reference to "sex" means *only* sex assigned at birth. We have "construe[d] 'discrimination'

under Title IX broadly," *Jackson* v. *Birmingham Bd. of Ed.*, 544 U. S. 167, 174 (2005), to ensure that the statute protects against denial of "opportunities on the basis of gender," *Davis* v. *Monroe County Bd. of Ed.*, 526 U. S. 629, 650 (1999). Thus we have recognized that Congress's antidiscrimination statutes "intended to strike at the entire spectrum of disparate treatment of men and women resulting from sex stereotypes." *Los Angeles Dept. of Water and Power* v. *Manhart*, 435 U. S. 702, 707, n. 13 (1978) (internal quotation marks omitted) (discussing Title VII). That is why, in the analogous Title VII context, "an employer who acts on the basis of a belief that a woman cannot be aggressive, or that she must not be, has acted on the basis of gender" and has therefore violated the statute. *Price Waterhouse* v. *Hopkins*, 490 U. S. 228, 250 (1989) (plurality opinion).

The prohibition against stereotyping is difficult to explain fully by reference to sex assigned at birth. A sex stereotype often will but need not have anything to do with an individual's sex assigned at birth. A transgender woman penalized for being perceived as aggressive has experienced discrimination "on the basis of sex" just as much as a cisgender woman has, no matter that the transgender woman's behavior matches expectations of her sex assigned at birth. Either way, the institution has imposed its gender-based expectations upon her. And either way, the institution may have violated Title IX.

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In short, the majority is wrong to suggest that the term "sex" in Title IX "cannot plausibly be interpreted to refer to anything other than biological sex." *Ante*, at 974. Title IX makes room for individuals to live in the gender they choose; it cares not just about sex assigned at birth but also about individuals' ability to match (or not) their gender presentation to their gender identity. Because West Virginia's law forces B. P. J. to live—in this case, to play—as a boy though she is a girl, it might well run afoul of Title IX properly construed.